TITLE 8.—ALIENS AND CITIZENSHIP

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CROSS REFERENCE

Enemy aliens, see Title 50, War.

Chapter 1.—CITIZENSHIP.

Sec.
1. Citizens; who are.
2. Same; persons born in Oregon.
3. Same; Indians; Indians serving in Military or Naval Establishments during World War.
4. Same; Hawaiians.
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6. Same; children of citizens born outside of United States.
7. Citizenship of children of persons naturalized under certain laws.
8. Same; children, born abroad, of alien parents, by naturalization of parent.
9. Same; citizenship of women citizens of United States as affected by marriage; marriage to alien ineligible to citizenship; citizenship at termination of marriage status; effect of continuous residence outside of United States; expatriation laws not affected.
10. Same; women marrying citizens; effect of repeal of former law.
11. Forfeiture of citizenship for desertion or avoidance of draft.
12. Same; Civil War.
13. Protection to naturalized citizens abroad.
14. Release of citizens imprisoned by foreign governments.
15. Expatriation; right of.
16. Same; during time of war.
17. Same; presumption.
18. Repatriation of expatriated citizens.

Section 1. Citizens; who are.—All persons born in the United States and not subject to any foreign power are declared to be citizens of the United States. (R. S. § 1992.)

2. Same; persons born in Oregon.—All persons born in the district of country formerly known as the Territory of Oregon, and subject to the jurisdiction of the United States on the 18th May, 1872, are citizens in the same manner as if born elsewhere in the United States. (R. S. § 1995.)

3. Same; Indians; Indians serving in Military or Naval Establishments during World War.—All Indians born within the territorial limits of the United States are declared to be citizens of the United States. The granting of citizenship to Indians shall not in any manner affect the right of any Indian to tribal or other property.

Every American Indian, who served in the Military or Naval Establishments of the United States during the war against the Imperial German Government, and who has received or may receive an honorable discharge, if not a citizen on November 6, 1919, and if he so desires shall, on proof of such discharge and after proper identification before a court of competent jurisdiction, and without other examination, except as prescribed by said court, be granted full citizenship with all the privileges pertaining thereto, without in any manner impairing or otherwise affecting the property rights, individual or tribal, of any such Indian, or his interest in tribal or other Indian property. (R. S. § 2312; Feb. 8, 1887, c. 119, § 6, 24 Stat. 390; Mar. 3, 1901, c. 868, 31 Stat. 1447; May 8, 1906, c. 2348, 34 Stat. 182; Nov. 6, 1919, c. 95, 41 Stat. 350; Mar. 3, 1921, c. 119, § 3, 41 Stat. 1250; June 2, 1924, c. 233, 43 Stat. 253.)

4. Same; Hawaiians.—All persons who were citizens of the Republic of Hawaii on August 12, 1898, are declared to be citizens of the United States. (Apr. 30, 1900, c. 339, § 4, 31 Stat. 141.)

5. Same; Porto Ricans.—All citizens of Porto Rico, as defined by section 733 of Title 48, and all natives of Porto Rico who were temporarily absent from that island on April 11, 1899, and have since returned and are permanently residing in that island, and are not citizens of any foreign country, are declared, and shall be deemed and held to be, citizens of the United States: *Provided*, That any person hereinbefore described retained his political status held on March 2, 1917, by making a declaration, under oath, of his decision to do so within six months from said date before the district court in the district in which he resided, the declaration to be in form as follows:

"I, , being duly sworn, hereby declare my intention not to become a citizen of the United States as provided in the Act of Congress conferring United States citizenship upon citizens of Porto Rico and certain natives permanently residing in said island."

In the case of any such person who may have been absent from the island during said six months the term of this proviso were availed of by transmitting a declaration, under oath, in the form herein provided within six months from March 2, 1917, to the executive secretary of Porto Rico. Any person who was born in Porto Rico of an alien parent and was permanently residing in that island may, if of full age, within six months from March 2, 1917, or if a minor, upon reaching his majority or within one year thereafter, make a sworn declaration of allegiance to the United States before the United States District Court for Porto Rico, setting forth therein all the facts connected with his or her birth and residence in Porto Rico and accompanying due proof thereof, and from and after the making of such declaration shall be considered to be a citizen of the United States. (Mar. 2, 1917, c. 145, § 5, 39 Stat. 953.)

6. Same; children of citizens born outside of United States.—All children born out of the limits and jurisdiction of the United States, whose fathers may be at the time of their birth citizens of the United States, are declared to be citizens of the United States; but the right of citizenship shall not descend to children whose fathers never resided in the United States. All such children who continue to reside outside the United States shall, in order to receive the protection of this Government, be required upon reaching the age of eighteen years to record at an American consulate their intention to become residents and remain citizens of the United States and shall be further required to take the oath of allegiance to the United States upon attaining their majority. Duplicates of any evidence, registration, or other acts required by this section shall be filed with the Department of State for record. (R. S. § 1993; Mar. 2, 1907, c. 2534, §§ 6, 7, 34 Stat. 1229.)

7. Citizenship of children of persons naturalized under certain laws.—The children of persons who have been duly naturalized under any law of the United States, or who, previous to the passing of any law on that subject, by the Government of the United States, may have become citizens of any one of the States, under the laws thereof, being under the age of twenty-one years at the time of the naturalization of their parents, shall, if dwelling in the United States, be considered as citizens thereof; and the children of persons who now are, or have been, citizens of the United States, shall, though born out of the limits and jurisdiction of the United States, be considered as citizens thereof. (R. S. § 2172.)

8. Same; children, born abroad, of alien parents, by naturalization of parent.—A child born without the United States of alien parents shall be deemed a citizen of the United States by virtue of the naturalization of or resumption of American citizenship by the parent, where such naturalization or resumption takes place during the minority of such child. The citizenship of such minor child shall begin at the time such minor child begins to reside permanently in the United States. (Mar. 2, 1907, c. 2534, § 5, 34 Stat. 1229.)

9. Same; citizenship of women citizens of United States as affected by marriage; marriage to alien ineligible to citizenship; citizenship at termination of marriage status; effect of continuous residence outside of United States; expatriation laws not affected.—A woman citizen of the United States shall not cease to be a citizen of the United States by reason of her marriage, unless she makes a formal renunciation of her citizenship before a court having jurisdiction over naturalization of aliens: *Provided*, That any woman citizen who marries an alien ineligible to citizenship shall cease to be a citizen of the United States. If at the termination of the marital status she is a citizen of the United States she shall retain her citizenship regardless of her residence. If during the continuance of the marital status she resides continuously for two years in a foreign State of which her husband is a citizen or subject, or for five years continuously outside the United States, she shall thereafter be subject to the same presumption as is a naturalized citizen of the United States under section 17 of this title. Nothing herein shall be construed to repeal or amend the provisions of section 15 of this title or of section 17 with reference to expatriation. The repeal of section 3 of Act March 2, 1907, chapter 2534, Thirty-fourth Statutes, page 1228, which provided that "any American woman who marries a foreigner shall take the nationality of her husband," and that "at the termination of the marital relation she may resume her American citizenship, if abroad, by registering as an American citizen within one year with a consul of the United States, or by returning to reside in the United States, or, if residing in the United States at the termination of the marital relation, by continuing to reside therein," shall not restore citizenship lost thereunder, nor terminate citizenship resumed thereunder; and any woman who had resumed thereunder citizenship lost by marriage shall, from September 22, 1922, have for all purposes the citizenship status as immediately preceding her marriage. (Sept. 22, 1922, c. 411, §§ 3, 7, 42 Stat. 1022.)

10. Same; women marrying citizens; effect of repeal of former law.—The repeal of section 1994 of the Revised Statutes of 1874, providing that "any woman who is now or may hereafter be married to a citizen of the United States, and who might herself be lawfully naturalized, shall be deemed a citizen", shall not terminate citizenship acquired or retained thereunder. Nor shall the repeal of section 4 of Act March 2, 1907, chapter 2534, Thirty-fourth Statutes, page 1229, providing that "any foreign woman who acquires American citizenship by marriage to an American shall be assumed to retain the same after the termination of the marital relation if she continue to reside in the United States, unless she makes formal renunciation thereof before a court having jurisdiction to naturalize aliens, or if she resides abroad she may retain her citizenship by registering as such before a United States consul within one year after the termination of such marital relation", terminate citizenship acquired or retained thereunder, nor restore citizenship lost thereunder. (Sept. 22, 1922, c. 411, § 6, 42 Stat. 1022.)

11. Forfeiture of citizenship for desertion or avoidance of draft.—Every person who deserts the military or naval service of the United States, or who, being duly enrolled, departs the jurisdiction of the district in which he is enrolled, or goes beyond the limits of the United States, with intent to avoid any draft into the military or naval service, lawfully ordered, shall be liable to all the penalties and forfeitures of section 12 of this title. The provisions of this section and said section 12 shall not apply to any person deserting the military or naval service of the United States in time of peace. The loss of rights of citizenship heretofore imposed by law upon deserters from the military or naval service may be mitigated or remitted by the President where the offense was committed in time of peace and where the exercise of such clemency will not be prejudicial to the public interests. (R. S. § 1998; Aug. 22, 1912, c. 336, § 1, 37 Stat. 356.)

12. Same; Civil War.—All persons who deserted the military or naval service of the United States and did not return thereto or report themselves to a provost marshal within sixty days after the issuance of the proclamation by the President, dated March 11, 1865, are deemed to have voluntarily relinquished and forfeited their rights of citizenship, as well as their right to become citizens; and such deserters shall be forever incapable of holding any office of trust or profit under the United States, or of exercising any rights of citizens thereof. No soldier or sailor, however, who faithfully served according to his enlistment until April 19, 1865, and who, without proper authority or leave first obtained, quit his command or refused to serve after that date, shall be held to be a deserter from the Army or Navy; and this section shall be construed solely as a removal of any disability such soldier or sailor may have incurred, by the loss of citizenship and of the right to hold office, in consequence of his desertion. (R. S. §§ 1996, 1997.)

13. Protection to naturalized citizens abroad.—All naturalized citizens of the United States, while in foreign countries, are entitled to and shall receive from this Government the same protection of persons and property which is accorded to native-born citizens. (R. S. § 2000.)

14. Release of citizens imprisoned by foreign governments.—Whenever it is made known to the President that any citizen of the United States has been unjustly deprived of his liberty by or under the authority of any foreign government, it shall be the duty of the President forthwith to demand of that government the reasons of such imprisonment; and if it appears to be wrongful and in violation of the rights of American citizenship, the President shall forthwith demand the release of such citizen, and if the release so demanded is unreasonably delayed or refused, the President shall use such means, not amounting to acts of war, as he may think necessary and proper to obtain or effectuate the release; and all the facts and proceedings relative thereto shall as soon as practicable be communicated by the President to Congress. (R. S. § 2001.)

15. Expatriation; right of.—Whereas the right of expatriation is a natural and inherent right of all people, indispensable to the enjoyment of the rights of life, liberty, and the pursuit of happiness; and whereas in the recognition of this principle this Government has freely received emigrants from all nations, and invested them with the rights of citizenship; and whereas it is claimed that such American citizens, with their descendants, are subjects of foreign states, owing allegiance to the governments thereof; and whereas it is necessary to the maintenance of public peace that this claim of foreign allegiance should be promptly and finally disavowed: Therefore any declaration, instruction, opinion, order, or decision of any officer of the United States which denies, restricts, impairs, or questions the right of expatriation, is declared inconsistent with the fundamental principles of the Republic. (R. S. § 1999.)

16. Same; during time of war.—No American citizen shall be allowed to expatriate himself when the country is at war. (Mar. 2, 1907, c. 2534, § 2, 34 Stat. 1228.)

17. Same; presumption.—Any American citizen shall be deemed to have expatriated himself when he has been naturalized in any foreign State in conformity with its laws, or when he has taken an oath of allegiance to any foreign State.

When any naturalized citizen shall have resided for two years in the foreign State from which he came, or for five years in any other foreign State it shall be presumed that he has ceased to be an American citizen, and the place of his general abode shall be deemed his place of residence during said year. Such presumption may be overcome on the presentation of satisfactory evidence to a diplomatic or consular officer of the United States, under such rules and regulations as the Department of State may prescribe. Duplicates of any evidence, registration, or other acts required by this section shall be filed with the Department of State for record. (Mar. 2, 1907, c. 2534, §§ 2, 7, 34 Stat. 1229.)

18. Repatriation of expatriated citizens.—Any person who, while a citizen of the United States and during the World War in Europe, entered the military or naval service of any country at war with a country against whom the United States declared war, who shall be deemed to have lost his citizenship by reason of any oath or obligation taken by him for the purpose of entering such service, may resume his citizenship by taking the oath of allegiance to the United States prescribed by the naturalization law and regulations, and such oath may be taken before any court of the United States or of any State authorized by law to naturalize aliens or before any consul of the United States, and certified copies thereof shall be sent by such court or consul to the Department of State and the Bureau of Naturalization. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; June 25, 1910, c. 401, § 3, 36 Stat. 830; May 9, 1918, c. 69, §§ 1-3, 40 Stat. 542-548.)

Chapter 2.—ELECTIVE FRANCHISE.

Sec.
31. Race, color, or previous condition not to affect right to vote.
32. Interference with freedom of elections.

Section 31. Race, color, or previous condition not to affect right to vote.—All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State, Territory, district, county, city, parish, township, school district, municipality, or other territorial subdivision, shall be entitled and allowed to vote at all such elections, without distinction of race, color, or previous condition of servitude; any constitution, law, custom, usage, or regulation of any State or Territory, or by or under its authority, to the contrary notwithstanding. (R. S. § 2004.)

32. Interference with freedom of elections.—No officer of the Army or Navy of the United States shall prescribe or fix, or attempt to prescribe or fix, by proclamation, order, or otherwise, the qualifications of voters in any State, or in any manner interfere with the freedom of any election in any State, or with the exercise of the free right of suffrage in any State. (R. S. § 2003.)

Chapter 3.—CIVIL RIGHTS.

Sec.
41. Equal rights under the law.
42. Property rights of citizens.
43. Civil action for deprivation of rights.
44. Exclusion of jurors on account of race or color.
45. Same; jurisdiction of prosecutions.
46. Same; review of proceedings.
47. (1) Conspiracies; preventing officer from performing duties. (2) Same; to intimidate party, witness or juror, or obstruct justice. (3) Same; to deprive citizen of rights or privileges.
48. Same; action for neglect to prevent.
49. Prosecution of violation of certain laws.
50. Commissioners; appointment of persons to execute warrants.
51. Marshal; to obey precepts; refusing to receive or execute process.
52. Fees; certain officers.
53. Same; persons appointed to execute process.
54. Speedy trial.
55. Aid of military and naval forces.
56. Peonage abolished.

Section 41. Equal rights under the law.—All persons within the jurisdiction of the United States shall have the same right in every State and Territory to make and enforce contracts, to sue, be parties, give evidence, and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens, and shall be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other. (R. S. § 1977.)

42. Property rights of citizens.—All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property. (R. S. § 1978.)

43. Civil action for deprivation of rights.—Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. (R. S. § 1979.)

44. Exclusion of jurors on account of race or color.—No citizen possessing all other qualifications which are or may be prescribed by law shall be disqualified for service as grand or petit juror in any court of the United States, or of any State, on account of race, color, or previous condition of servitude; and any officer or other person charged with any duty in the selection or summoning of jurors who shall exclude or fail to summon any citizen for the cause aforesaid shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not more than $5,000. (Mar. 1, 1875, c. 114, § 4, 18 Stat. 336.)

45. Same; jurisdiction of prosecutions.—The district courts of the United States shall have, exclusively of the courts of the several States, cognizance of all crimes and offenses against, and violations of, the provisions of the preceding section. The district attorneys, marshals, and deputy marshals of the United States, and United States commissioners with powers of arresting and imprisoning or bailing offenders against the laws of the United States, are hereby specially authorized and required to institute proceedings against every person who shall violate the provisions of the preceding section, and cause him to be arrested and imprisoned or bailed, as the case may be, for trial before such court of the United States, or Territorial court, as by law has cognizance of the offense, and such district attorneys shall cause such proceedings to be prosecuted to their termination as in other cases. Nothing contained in this section shall be construed to deny or defeat any right of civil action accruing to any person, whether by reason of this act or otherwise; and any district attorney who shall willfully fail to institute and prosecute the proceedings herein required, shall, for every such offense, forfeit and pay the sum of $500 to the person aggrieved thereby, to be recovered by an action of debt, with full costs, and shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not less than $1,000 nor more than $5,000. Judgment for the penalty in favor of the party aggrieved against any such district attorney, or a judgment upon an indictment against any such district attorney, shall be a bar to either prosecution respectively. (Mar. 1, 1875, c. 114, § 3, 18 Stat. 336.)

46. Same; review of proceedings.—All cases arising under the provisions of section 41 of this title in the courts of the United States shall be reviewable by the Supreme Court of the